

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Henry Oliver	Team: Squad #13	CCRB Case #: 201807845	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/16/2018 12:00 AM, Monday, 09/17/2018 12:00 AM, NA, 09/__/2018 3:00 PM	Location of Incident: 70th Precinct stationhouse	18 Mo. SOL 3/1/2020	Precinct: 70		
Date/Time CV Reported Fri, 09/21/2018 1:51 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/21/2018 1:51 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM James Coughlin	24173	950245	070 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A . POM James Coughlin	Abuse: Police Officer James Coughlin refused to provide his name to § 87(2)(b)		A . Unsubstantiated		

Case Summary

On September 21, 2018, § 87(2)(b) called the CCRB and filed this complaint.

On an unknown date in September of 2018, at approximately 3:00 p.m., § 87(2)(b) entered the 70th Precinct stationhouse to inquire about a previously filed complaint. She encountered Police Officer James Coughlin, of the 70th Precinct, at the front desk. PO Coughlin allegedly refused to provide his name upon request. (Allegation A: Abuse of Authority; **unsubstantiated**). No summons or arrest resulted from this incident.

There is no video evidence in this case.

Findings and Recommendations

Allegation A – Abuse of Authority: An officer refused to provide his name to § 87(2)(b)

§ 87(2)(b) stated that on an unknown date in September of 2018, she entered the 70th Precinct stationhouse, to receive a copy of a previously filed complaint report (BR 01). She believed the incident occurred on September 17, 2018 or September 18, 2018, but could not commit to either date as she did not want to provide false information. She approached the front desk where she encountered PO Coughlin who was pleasant until he viewed a copy of the complaint. PO Coughlin then became rude and argumentative. PO Coughlin told § 87(2)(b) she was lucky she had not been arrested for the incident, and he ordered her to leave the stationhouse. § 87(2)(b) and PO Coughlin argued, and § 87(2)(b) asked to speak with a supervisor, but no supervisor ever came to speak with her. § 87(2)(b) requested PO Coughlin's name, but he did not respond to the question. § 87(2)(b) was told she was listed as the "aggressor" on the report, and that she could not receive a copy of the report unless she had the report number. § 87(2)(b) complained to PO Coughlin about his behavior, and PO Coughlin told her she could file a complaint with the CCRB. § 87(2)(b) requested PO Coughlin's name a second time, and PO1 turned and walked away from § 87(2)(b). § 87(2)(b) spoke with an unknown Asian female officer who apologized for PO Coughlin's behavior. § 87(2)(b) immediately left the stationhouse.

PO Coughlin corroborated the circumstances of this incident as described by § 87(2)(b) but denied refusing to provide his name to § 87(2)(b) upon request (BR 02). He believed the incident occurred on September 16, 2019, and said he was not working on September 17, 2019. He said § 87(2)(b) asked him for his name before their conversation became contentious and that he provided his name to her. PO Coughlin could not recall if any other officers were present during the incident, but stated that if another officer was present, it would have been Police Officer Jessica Victoria of the 70th Precinct, an Asian female officer.

PO Victoria did not recall the incident, and stated that while she worked the Telephone Switchboard on September 17, 2018, she did not have a stationhouse assignment on September 16, 2018 and September 18, 2018 (BR 03 and BR 04).

No command log entry was prepared regarding this incident (BR 05).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegation A** be closed as ***unsubstantiated***.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED] has been party to three CCRB complaints and has been named a victim in two allegations (BR 06):
 - § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
- PO Coughlin has been a member-of-service for seven years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
- As of April 29, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR 08).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

